

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
DANIEL KELLY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICERS
JANE and JOHN DOE #'s 1-8 (Names and Numbers
are unknown at present) and other unidentified
Members of the New York City Police Department,

Defendants.
-----X

SUMMONS

Index #

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 16, 2020

Respectfully submitted,

/s/
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER JOHN and Jane DOE #'s 1-8 83rd Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
DANIEL KELLY,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD OFFICERS
JANE and JOHN DOE #'s 1-8 (Names and Numbers
are unknown at present) and Other Unidentified members
of the New York City Police Department,

Defendants.

-----X
Plaintiff **Daniel Kelly**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff, engaged in malicious prosecution and denial of a fair trial of the plaintiff.

PARTIES

2. Daniel Kelly is a citizen of the United States and a resident of New York.
3. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
5. New York Police Officers John and Jane Doe #'s 2-8 are and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officers John and Jane Doe #2-8 are being sued in his/her individual capacity and official capacity.

7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
8. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
9. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
10. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
11. The City of New York held a 50(h) hearing examination of the Plaintiff on October 8, 2019.

STATEMENT OF FACTS

12. On December 11, 2018 at approximately 5:00 a.m., at 1545 St. John Place, Apartment 2E, in Brooklyn, New York, Mr. Kelly was at home when police officers unlawfully entered and searched his apartment. He was unlawfully arrested for tampering with a witness, assault, criminal mischief, menacing, and harassment.
13. Mr. Kelly denies the charges. The police claimed he assaulted and verbally threatened a witness in a case involving his brother, "Ike". That is false. Mr. Kelly does not have a brother named Ike, nor does he know anyone by that name. No witnesses identified him.
14. Bail was set at arraignment.
15. Mr. Kelly was incarcerated for approximately 7 days. He attended approximately 4 court appearances. On account of his arrest, he missed 5 days of work, losing \$250 in income and was terminated from his job.
16. All charges against Mr. Kelly were dismissed on June 28, 2019.

FIRST CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

17. Plaintiff repeats and alleges paragraphs 1 through 16 as if fully set forth herein.
18. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
19. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
20. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

21. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully set forth at length herein.
22. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
23. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
24. Defendants commenced and continued a criminal proceeding against plaintiff.
25. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
26. The prosecution and criminal proceedings terminated favorably to plaintiff on June 28, 2019.
27. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.

28. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth at length herein.
32. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
33. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
34. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
35. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. Defendants owed a duty of care to plaintiff.
39. Defendants breached that duty of care by subjecting his to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
40. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
41. All of the foregoing occurred without any fault by plaintiff.
42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
45. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
46. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH, EIGHTH, NINTH, TENTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Fifth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's federal first-amendment-retaliation claim (7th claim); false-arrest/unlawful-search claims (8th claim); malicious-prosecution claim (9th claim) and deprivation-of-fair-trial claim (10th claim).

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.

49. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
50. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his First, Fourth, Fifth, and Fourteenth Amendment rights.
51. In particular, Plaintiff alleges that Defendants' retaliatory and harassing false arrest, use of undue and excessive force upon him causing him physical injury, unlawful search, malicious prosecution and fabrication of evidence violated his First, Fourth, Fifth and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
52. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiff repeats and reiterates the above allegations in support of the federal claims here.
53. In the event Plaintiff prevails at trial on one, some or all of his 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

ELEVENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.
55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
56. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
57. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has

58. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
59. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
60. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
61. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

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ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 14, 2020

_____/s/
Sydney O'Hagan, Esq.